

REPUBLIC V. EDWARD GIRIKI, 1983 TLR 165.

JUDGEMENT.

E Rubama, J.: On a plea of guilty to selling goods above the prescribed maximum price c/ss 20 and 26 of the Regulation of Prices Act, 1973, Edward Giriki was convicted and sentenced to three months imprisonment.

F The accused was a first offender, young (18 years) and had readily pleaded guilty to the offence he stood charged with. He had sold two kilos of meat at above the prescribed price. He should have been given the opportunity of paying fine. The trial magistrate in not fining the accused had alluded to the fact that the offence was prevalent and serious and G further that those who get convicted of it readily paid fines. They should not be allowed to get away with it - they must feel the pinch by going to prison. I do not find much merit in the argument. If the fine was felt inadequate for the offence, the National Assembly would have changed the law and make the imposition of prison sentence on those found guilty mandatory. In cases where the courts have a discretion to impose a fine, then worthy cases must be dealt with H accordingly. There is no merit in exposing young ones, such as the accused, to hard core criminals.

The fact that fines are paid when imposed is not by itself reason to impose a prison sentence. It does not stand to reason I to argue that people do not feel the pinch when they pay fines. They

A pay because they want to avoid going to Prisons and this is a different thing from saying that they pay without difficulties. It all depends on the fine; and here the court must be careful not to impose a fine that would really make it unpayable. The purpose of the sentence must be borne in mind. History of sentencing has clearly demonstrated that draconian sentences do not by themselves achieve much. The present tendency of businessmen overpricing has much B deeper causes; one of which is market mechanism - the outcome of the law of demand and supply; courts must not just over react. It must be judicious and see what it needs to achieve. In imprisoning the accused in the case under review, I C see no reformatory or deterrent elements in the sentence. It is too short for achieving either of the lofty objectives. As I point out above, the appropriate sentence would have been a fine calculated to meet the case. Granted that the offence was prevalent but the accused was only caught selling two kilos of meat above the prescribed price. The trial magistrate D was not told what was the prescribed maximum either, for all that, the overpricing may not have been much. I do not say this made it less of an offence. No, but it certainly should have been a factor when determining the sentence. I would have revised the sentence on

the lines intimated above if it were not for the fact that the accused had been sentenced on E 5/1/82 and has thus long finished serving the sentence. The proceedings are closed.

Order accordingly F

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